According to Section 2(45) of the Companies Act 2013, a Company Secretary must possess the qualifications prescribed by the Central Government from time to time.The qualifications prescribed by the Companies Secretary's Qualifications) Rules 1975, for the Secretary of a Company are:

A (i) In case of a company having a paid-up share capital of ₹5 crore or more, the Secretary must be a member of the Institute of Company Secretaries of India incorporated under the Companies Act, 1956, and licensed under Sec. 25 of that Act.

(ii) A person who is a member of the Institute of Chartered Secretaries of London shall also be eligible for appointment as Secretary of such a company.

(B) In the case of any other company, one or more of the following qualifications shall have to be possessed by the Secretary:

(i) Qualifications specified in clause (a) above;

(ii) A degree in law granted by any university.

(iii) Membership of the Institute of Chartered Accountants of India.

(iv) Membership of the Institute of Cost and Works Accountants of India.

(v) A post-graduate degree or diploma in Management or Commerce granted by any university or the Indian Institute of Management.

(vi) A diploma in Company Law granted by any Indian Law Institute.

28.02.02 Other Qualifications

The Secretary also hold the following qualifications.



28.03 Appointment of Company Secretary

As per section 2(24), 203, 204 of Companies Act 2013 the provisions regarding appointment of company secretary are Every listed Company must have full-time Company Secretary.

Every unlisted company and every private company having a paid up capital of ₹5 crore or more must also have a full time secretary.

Only an individual who is a member of institute of company secretaries of India can be appointment as a company secretary.

a) By the Promoters: The first secretary of a company is appointed by the promoters at pre-incorporation stage and such name is mentioned in the Articles of Association.

b) By the First board of Directors: After the company has been registered, the first board of directors appoints the secretary at the first board meeting. The board of directors can continue the existing secretary appointed by promoters or can appoint a new company secretary.

28.04 Functions/ Duties of Company Secretary

Functions of the Company Secretary may be discussed under two headings:

(i) Statutory Functions or Duties and (ii) Non-statutory Functions or Duties.



12th Commerce Unit 10.indd 262 12/14/2020 2:55:35 PM